

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Cordell Hackshaw	Team: Team # 2	CCRB Case #: 201003570	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☒ O.L. ☐ Injury
Incident Date(s) Sunday, 01/03/2010 12:00 AM, Monday, 02/01/2010 12:00 AM, Tuesday, 02/02/2010 12:00 AM, Wednesday, 02/03/2010 12:00 AM, Thursday, 02/04/2010 7:	Location of Incident: § 87(2)(b)	18 Mo. SOL 8/4/2011	Precinct: 75
Date/Time CV Reported Wed, 03/17/2010 2:37 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 03/17/2010 2:37 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Dennis Friendly	02755	930185	NARCBBN
2. SGT Michael White	04207	907749	NARCBBN
3. SGT Dominick Maranzano	03571	917921	NARCBBN
4. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Matthew Francis	06100	925310	NARCBBN
2. POM Michael Mitchell	12463	935328	NARCBBN
3. DT3 Michelle Martinez	07087	935258	NARCBBN
4. DT3 Hugo Ortega	29438	935438	NARCBBN

Officer(s)	Allegation	Investigator Recommendation
A . SGT Michael White	Abuse: On February 1 and 3, 2010, Sgt. Michael White supervised the entry and search of § 87(2)(b) in Brooklyn.	A . Unsubstantiated
B . An officer	Discourtesy: On February 1 and 3, 2010, an officer spoke rudely to § 87(2)(b)	B . Officer(s) Unidentified
C . SGT Dominick Maranzano	Abuse: On February 4, 2010, Sgt. Dominick Maranzano supervised the entry and search of § 87(2)(b), Brooklyn.	C . Unsubstantiated
D . DT3 Dennis Friendly	Discourtesy: On February 4, 2010, Det. Dennis Friendly spoke obscenely to § 87(2)(b) and § 87(2)(b)	D . Unsubstantiated
E . DT3 Dennis Friendly	Off. Language: On February 4, 2010, Det. Dennis Friendly made remarks to § 87(2)(b) and § 87(2)(b) based upon race.	E . Unsubstantiated

Case Summary

§ 87(2)(b) filed this complaint via telephone with the Civilian Complaint Review Board (CCRB) on March 17, 2010 (Encl. B1-B3).

§ 87(2)(b) alleged that on February 4, 2010, at approximately 7:00 p.m., while he was at § 87(2)(b) in Brooklyn, officers entered and searched without a warrant. § 87(2)(b) also stated that officers came to § 87(2)(b) on February 1, 2010 and February 3, 2010. The following allegations resulted from the interactions:

- **Allegation A – Abuse of Authority:** On February 1 and 3, 2010, Sgt. Michael White supervised the entry and search of § 87(2)(b) in Brooklyn.
- **Allegation C – Abuse of Authority:** On February 4, 2010, Sgt. Dominick Maranzano supervised the entry and search of § 87(2)(b) Brooklyn. § 87(2)(g)
- **Allegation B – Discourtesy:** On February 1 and 3, 2010, an officer spoke rudely to § 87(2)(b) § 87(2)(g)
- **Allegation D – Discourtesy:** On February 4, 2010, Det. Dennis Friendly spoke obscenely to § 87(2)(b) and § 87(2)(b)
- **Allegation E – Offensive Language:** On February 4, 2010, Det. Dennis Friendly made remarks to § 87(2)(b) and § 87(2)(b) based upon race. § 87(2)(g)

Results of Investigation

Civilians' Statements

Complainant/Victim: § 87(2)(b)

- § 87(2)(b)

CCRB Statement

§ 87(2)(b) was interviewed at the CCRB on April 6, 2010 (Encl. B4-B6). On February 4, 2010, at approximately 7:00 p.m., § 87(2)(b) was inside § 87(2)(b) which is a two floor family home. He was inside the first floor apartment for the first time visiting § 87(2)(b) was in the apartment for about a half hour. There were three other persons in the apartment. There was a male by the name of "§ 87(2)(b) identified through investigation as § 87(2)(b) in the bedroom at the furthest end of the apartment, a white male dressed in military fatigues known as "§ 87(2)(b) identified through investigation as § 87(2)(b) and another male called "§ 87(2)(b) identified through investigation as § 87(2)(b) § 87(2)(b) and § 87(2)(b) were in the kitchen. § 87(2)(b) was only acquainted with § 87(2)(b) § 87(2)(b) and § 87(2)(b) were on the futon in the living room. § 87(2)(b) saw § 87(2)(b) leave and return to the apartment several times while § 87(2)(b) was in the apartment. § 87(2)(b) was aware that on the second floor apartment, there have been drug activities. As far as § 87(2)(b) knew, § 87(2)(b)

§ 87(2)(b) and § 87(2)(b) were not involved in drug activities. Suddenly two male plainclothes officers burst into the apartment with their guns drawn. They kicked down the front door to the building and then the front door of the apartment. PO 1 was a Hispanic/white male identified through investigation as Det. Matthew Francis and PO 2 was a black male, identified through investigation as Det. Dennis Friendly. § 87(2)(b) asked the officers why they were in the apartment. They stated that they wanted to search the apartment as well as the occupants. § 87(2)(b) asked the officers present for a warrant but none of them showed him a warrant. Det. Francis told Det. Friendly to “toss” everyone. Det. Friendly also looked around in the apartment. § 87(2)(b) asked Det. Friendly for his badge number and he replied “2755.”

Det. Friendly called for additional officers to come to the apartment. When these 3-4 unidentified officers in plainclothes arrived, they continued to search the apartment. They also placed everyone in the apartment in handcuffs with the exception of § 87(2)(b) who was left sleeping. One of the additional unidentified officers went into § 87(2)(b) bedroom where he found a small green pill. He came back into the living room and attempted to use the computer in order to determine what the pill was. However, the computer was too slow so he went outside to find out. He eventually came back into the apartment and stated that everyone should be arrested for the pill as it was a Zoloft pill that he found in the bedroom. § 87(2)(b) tried to explain that § 87(2)(b) was on medication and more than likely the medication belonged to him. The officers also stated that they found empty paraphernalia bags. Det. Friendly told § 87(2)(b) “Shut the fuck up nigger! You think you a jail house lawyer. You are a stupid ass nigger anyway! Get the fuck out of here. Ain’t nothing going to happen to me anyway. I ain’t losing my job.” § 87(2)(b) and the others were transported to the 75th Precinct.

Victim: § 87(2)(b)

- § 87(2)(b)

CCRB Statement

§ 87(2)(b) was interviewed at the CCRB on April 6, 2010 (Encl. B8-B10). On February 1, 2010, at approximately, 5:00 p.m., § 87(2)(b) was at her residence, § 87(2)(b) in Brooklyn. Her uncle, § 87(2)(b) owns the building and was away at the time. § 87(2)(b), § 87(2)(b) and § 87(2)(b) were also in the apartment. It is a one bedroom apartment and § 87(2)(b) sleeps in the living room. § 87(2)(b) was sitting at a computer located in the living room of the apartment when narcotics officers from the 75th Precinct burst into the apartment without permission by kicking in the front door and arrested everyone except § 87(2)(b). Four officers came into the apartment and searched all the rooms of the apartment. However, the officers did not recover anything from their search. § 87(2)(b) asked for a warrant but none was shown to her. There was a black male unidentified officer who responded to § 87(2)(b)'s request by saying, “We don’t have no fucking search warrant. We do what the fuck we want to do.” § 87(2)(b) could not provide further description of this officer. There was a Hispanic male officer present who § 87(2)(b) referred to as Ortega, subsequently identified through investigation as Det. Hugo Ortega. § 87(2)(b) was familiar with Det. Ortega after having had numerous interactions with him. § 87(2)(b) and the others were all taken to the stationhouse and released with Desk Appearance Tickets. § 87(2)(b) alleged that officers returned to the apartment on February 2, 2010. § 87(2)(g)

On February 3, 2010, at approximately 5:00 p.m., at § 87(2)(b) in Brooklyn, officers entered and searched the apartment again. Officers kicked in the apartment door. Six plainclothes officers were in the apartment including Det. Ortega. § 87(2)(b) asked for a warrant but none was shown to her. An unidentified officer told her, “We don’t have no fucking search warrant. We do what the fuck we want to do. We gonna fucking lock you up” This officer mentioned that § 87(2)(b) s uncle, § 87(2)(b) was not paying rent to the city for the building. § 87(2)(b) and § 87(2)(b) were arrested and released from the stationhouse with DATs.

On February 4, 2010, at approximately 7:00 p.m., at § 87(2)(b) in Brooklyn, § 87(2)(b) was in the living room with her boyfriend § 87(2)(b) § 87(2)(b) was in the apartment since 9:00 a.m., when she got out of jail from the previous day. § 87(2)(b) and § 87(2)(b) were also in the apartment. § 87(2)(b) and § 87(2)(b) frequent the apartment but § 87(2)(b) never saw either using drugs. § 87(2)(b) is a friend of § 87(2)(b) since their days in the army. § 87(2)(b) alleged that Det. Ortega and a black male officer identified through investigation as Det. Dennis Friendly entered the apartment at this time unannounced. § 87(2)(b) noted that the black male officer was not the same officer who was present for the two previous incidents. The officers told § 87(2)(b) and § 87(2)(b) to go to the kitchen where § 87(2)(b) and § 87(2)(b) were already being held. § 87(2)(b) was also in the apartment. He was sleeping and was not taken into custody. Other unidentified officers arrived and searched the living room and the rest of the apartment. § 87(2)(b) asked an unidentified officer for a warrant but none was shown to her. § 87(2)(b) also repeatedly asked for a warrant but no one showed him a warrant. A black male officer, identified through the investigation as Det. Friendly, was extremely rude and obnoxious. He told § 87(2)(b) “shut the fuck up” Det. Friendly also told everyone, “Don’t worry about what the fuck” he was doing. He referred to the apartment as a “squatter’s fucking house” and said “You niggers know better than this living in a squatters building.” Det. Friendly also called § 87(2)(b) “a black motherfucker,” a “nigger” and threatened to harass anyone of them who filed a complaint about the incident. He also referred to § 87(2)(b) as a “nigger.” Det. Friendly also mentioned that they had a warrant but he never showed one. Officers found a Zolofit pill and stated that everyone was going to be arrested for the pill. § 87(2)(b) stated that the officers found the pill in § 87(2)(b) bedroom but § 87(2)(b) was not taken into custody. The case was dismissed against § 87(2)(b) when she went to court.

Witness: § 87(2)(b)

- § 87(2)(b) *He contacted the CCRB via telephone on November 19, 2010 and provided the following telephone statement (Encl. B12).*

§ 87(2)(b) stated that § 87(2)(b) is technically not his niece but he regards her as such. He confirmed that at the time of the incidents, she was living at § 87(2)(b) in Brooklyn. He stated that he was at the location for all the incidents but he was never arrested. § 87(2)(b) kept a record of the times the officers came into the apartment and noted that they were present on February 1, 2010, February 3, 2010 and February 4, 2010. He recalled that on one of the days, § 87(2)(b) was sleeping in the living room when officers came in and arrested her.

§ 87(2)(b) said that he has been living at § 87(2)(b) for over 7 years and has given them permission to search the house approximately ten percent of the time the officers go to the location. From January 2010 thru March 2010, officers entered § 87(2)(b) more than 15 times. § 87(2)(b) said that he had a lease but the landlord abandoned the building and is currently in Haiti. On February 1, February 3 and February 4, § 87(2)(b) did not give the officers permission to enter his home and was in a back room at the times they entered. § 87(2)(b) stated

that the apartment building was not a “crack den” nor was it used for drug abuse. § 87(2)(b) added that he is friends with § 87(2)(b) and § 87(2)(b) and they are often at his home. § 87(2)(b) made no additional allegations other than officers entering and searching the location on February 1, 2010, February 3, 2010 and February 4, 2010.

Attempts to Contact Civilians

On March 23, 2010, a please call letter was sent to § 87(2)(b). On March 25, 2010, § 87(2)(b) was contacted via telephone and stated that he was having doubts about participating in the investigation. He said that he would first consult with his friends who are police and court officers before making a decision. However, § 87(2)(b) made no FADO allegations other than that officers entered the location on February 4, 2010. As of the date of this report, § 87(2)(b) has not contacted the CCRB.

Two please call letters were sent on April 26, 2010 and July 15, 2010 to the address listed on § 87(2)(b)'s arrest report as no telephone number was found for him. However, they were returned to the agency marked as “Unable to Forward.” A Lexis-Nexis search was conducted to find possible contact information but the search was negative.

NYPD Statements:

Subject Officer: SGT. MICHAEL WHITE

- Sgt. White is a § 87(2)(b)-old black male who is 6’1” tall, weighs 210lbs with black hair and brown eyes.
- On February 1, 2010, Sgt. White worked from 2:25 p.m. to 9:00 a.m. on February 2, 2010 as the 75th Precinct Narcotics Module 1 supervisor. He was working directly with PO Michael Mitchell and Det. Hugo Ortega. He did not recall who the additional officers present were.
- On February 3, 2010, Sgt. White worked from 2:25 p.m. to 6:35 p.m. on February 4, 2010. He was working with Det. Reynolds and Det. Martinez. He did not recall who the additional officers present were.

Memo book

On February 1, 2010, at 8:45 p.m., seven persons: § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b) and § 87(2)(b) were arrested inside of § 87(2)(b) for § 87(2)(b). On February 3, 2010, at 8:50 p.m., four persons were arrested inside § 87(2)(b) § 87(2)(b), § 87(2)(b), § 87(2)(b) and § 87(2)(b) (Encl. C1-C3).

CCRB Interview

The CCRB interviewed Sgt. Michael White on September 21, 2010 (Encl. C4-C5). Sgt. White stated that the Narcotics Unit had received numerous calls regarding § 87(2)(b) which is an abandoned building as the occupants steal electricity using an extension cord from the building next door. The front door has a broken lock but the door can be closed. It is a two family house with two floors and a basement. Sgt. White was unsure as to the state of the upstairs apartment but knew that the downstairs apartment had a broken door. He was unable to recall whether the door can be closed. Sgt. White noted that the building is a known drug location and used to smoke crack/cocaine. There is a male who lives at the location, § 87(2)(b) who calls the police often saying that there are individuals at the location using drugs. He is the only known resident of the building and lives on the first floor. Sgt. White stated that he and § 87(2)(b) had a verbal agreement which usually allows officers into the building when he calls. There had been

numerous arrests from this location; twenty seven last year and at the time of his interview, forty-five arrests for the year.

Despite there being KITES, warrants and calls relating to the building in the past, Sgt. White did not recall anything being connected to the building on that day. Sgt. White did not recall much of February 1, 2010 other than there were seven arrests at the location. He did not recall the circumstances that led him and other officers to be at the location. Sgt. White did not recall going into the building on February 1, 2010. Sgt. White did not recall if § 87(2)(b) allowed officers into the apartment on February 1, 2010. Sgt. White did not recall anyone asking for a warrant on February 1, 2010. Sgt. White did not recall using profanity or saying “We don’t have no fucking search warrant. We do what the fuck we want to do.”

On February 3, 2010, Sgt. White did not recall the circumstances that led him to that location. He did not recall anyone asking for a search warrant. He did not recall he or any officer saying, “We don’t have no fucking search warrant. We do what the fuck we want to do. We gonna fucking lock you up.” Sgt. White did not recall any officer ever kicking in the door at any time. Sgt. White did not recall whether Det. Ortega was present on February 3, 2010. Sgt. White stated he never saw any one on either February 1, 2010 or February 3, 2010, using drugs.

Witness Officer: PO MICHAEL MITCHELL

- *PO Mitchell is a § 87(2)(b)-old black male who is 5’11” tall, weighs 220lbs with black hair and brown eyes.*
- *On February 1, 2010, PO Mitchell was the arresting officer working with Sgt. Michael White and Det. Hugo Ortega doing narcotics enforcement. He was in plainclothes.*
- *On February 3, 2010, PO Mitchell was assigned to narcotics enforcement but he did not recall where he was working at the time. He stated that he did not go to § 87(2)(b) in Brooklyn.*

Memo book

On February 1, 2010, at 8:15 p.m., PO Mitchell arrested seven individuals at § 87(2)(b) in Brooklyn (Encl. C6-C8).

CCRB Statement

The CCRB interviewed PO Michael Mitchell on July 14, 2010 (Encl.). § 87(2)(g)
On February 1, 2010, PO Mitchell, Sgt. White and Det. Ortega went to § 87(2)(b). Prior to going to the incident location, the officers were at a nearby housing complex doing drug enforcement. PO Mitchell did not recall the circumstances that led him and the other officers to enter § 87(2)(b). PO Mitchell, Sgt. White and Det. Ortega were the only officers on the scene as far as PO Mitchell recalled. PO Mitchell initially entered the building then Sgt. White. PO Mitchell did not recall him or other officers kicking in any doors. When the officers entered the building, there were seven persons inside all using crack/cocaine in the first floor apartment. PO Mitchell did not recall if the apartment door was open or closed, if there were a female present or anyone asking for a search warrant when he or the other officers entered the apartment. They searched all the rooms of the apartment. PO Mitchell did not recall him or Sgt. White or Det. Ortega saying “We don’t have no fucking search warrant. We do what the fuck we want to do.” When shown a photograph of § 87(2)(b) PO Mitchell stated that she looked familiar but did not recall where he interacted with her. They perpetrators were taken to the 75th Precinct stationhouse.

Witness Officer: DET. HUGO ORTEGA

- Det. Ortega is a § 87(2)(b)-old Hispanic male who is 5'9" tall, weighs 180lbs and bald with brown eyes.
- On February 1, 2010, Det. Ortega worked from 2:30 p.m. to 11:00 p.m. On February 1, 2010, he was assigned to leader auto of a narcotics observation operation with the supervising officer, Sgt. Michael White and the arresting officer, PO Michael Mitchell. They were in a rental auto.
- On February 3, 2010, he worked from 2:33 p.m. to 11:00 p.m. He was assigned to narcotics enforcement patrolling Brooklyn North. However, Det. Ortega stated that he did not go to § 87(2)(b)

Memo Book

Det. Ortega had no memo book entries regarding this incident (Encl. C11-C15).

CCRB Statement

The CCRB interviewed Det. Hugo Ortega on July 14, 2010 (Encl. C16-C17). Det. Ortega remembered being at the location but did not recall specifically whether he was at the location on February 1, 2010 or February 3, 2010. Det. Ortega did not recall the time. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

On the date of the incident, Det. Ortega recalled several persons standing outside the location but would state later in the interview that there was only one person. The person was acting as look-out for the police but he was not engaged in any illegal activities in so far as Det. Ortega could have seen. Sgt. White and PO Mitchell proceeded into the apartment as the front door was already opened. Det. Ortega remained outside at the building's door for security reasons. Those who were smoking were arrested but Det. Ortega did not see much of the interaction as he was at the door. After Sgt. White and PO Mitchell had already secured the prisoners, they signaled for Det. Ortega to come in. When Det. Ortega entered the apartment, he saw about seven persons already in handcuffs. Det. Ortega was needed to provide more handcuffs to secure the remaining perpetrators. Det. Ortega did not recall anyone asking for a search warrant. Det. Ortega did not recall him or any other officer saying to anyone, "We have no fucking search warrant."

Witness Officer: DET. MICHELLE MARTINEZ

- Det. Martinez is a § 87(2)(b)-old Hispanic female who is 5'4" tall, weighs 140lbs with brown hair and brown eyes.
- On February 3, 2010, Det. Martinez worked from 2:15 p.m. to 8:00 a.m. on February 4, 2010. She was the arresting officer working with Det. Reynolds and Sgt. White. Det. Martinez was only at § 87(2)(b) on February 3, 2010.

Memo book

On February 3, 2010, at 8:50 p.m., Det. Martinez arrested four persons (Encl. C18-C20).

CCRB Statement

The CCRB interviewed Michelle Martinez on September 21, 2010 (Encl. C21-C22). Det. Martinez corroborated Sgt. White's description and assessment of § 87(2)(b) as well as the verbal agreement with § 87(2)(b). On February 3, 2010, while doing patrol in the area, Det. Martinez, Det. Reynolds and Sgt. White went to § 87(2)(b). Det. Martinez did not

recall Det. Ortega being present during this incident. Det. Martinez did not recall any specific calls or incident asking for officers to respond to the incident location. Det. Martinez stated that she did not recall whether § 87(2)(b) waved them over on February 3, 2010 or whether they simply walked into the building. Det. Martinez, Det. Reynolds and Sgt. White all entered the apartment at the same time. Det. Martinez saw four individuals smoking crack when she entered the apartment. They searched all the rooms of the apartment. Det. Martinez recognized § 87(2)(b) being present at the time of the incident and that she was arrested. Det. Martinez did not recall anyone asking for a warrant and no warrant was secured to enter the apartment. Det. Martinez did not recall Sgt. White saying, “We don’t have no fucking search warrant. We do what the fuck we want to do” nor any other officer saying this. The persons found inside the apartment were taken into custody and taken to the 75th Precinct stationhouse.

Subject Officer: SGT. DOMINIC MARANZANO

- *Sgt. Maranzano is a § 87(2)(b)-old white male who is 5’8” tall, weighs 220lbs with brown hair and blue eyes.*
- *On February 4, 2010, he worked from 12:25 p.m. to 9:00 p.m. He was the supervisor of the buy and bust operation in the 75th Precinct. He was working with Det. Francis and Det. Marinakos. Sgt. Maranzano also recalled Det. Friendly being present.*

Memo book

On February 4, 2010, at 7:15 p.m., four persons were arrested at § 87(2)(b) in Brooklyn. At 7:30 p.m., they were taken to the 75th Precinct stationhouse for arrest processing (Encl. C23-C25).

CCRB Statement

The CCRB interviewed Sgt. Maranzano on August 12, 2010 (Encl. C26-C27). On February 4, 2010, after conducting a buy and bust operation, Det. Matthew Francis told Sgt. Maranzano that they should drive by § 87(2)(b) as he had had multiple narcotics-related arrests at the location in the past. Det. Francis wanted to go to the location to see if there was anyone hanging in the vicinity, smoking or any sort of illegal activities. Sgt. Maranzano was not familiar with this location. When they arrived, Sgt. Maranzano felt that he would stick out in the neighborhood, so Det. Francis and Det. Friendly went up to § 87(2)(b). He did not recall where Det. Marinakos was located at the time but believed that he might have gone into § 87(2)(b) with Det. Francis and Det. Friendly. Sgt. Maranzano was in the car, parked several houses away. He could only see the front of the location. Five-six minutes later, Det. Francis and Det. Friendly notified Sgt. Maranzano that they had several arrests inside one of the apartments in the building. When Sgt. Maranzano went to the building, there was a front door which opened to a hallway with stairs leading to an upstairs apartment. There were four persons inside the first floor apartment in handcuffs. Det. Francis told Sgt. Maranzano that the four persons were smoking crack/cocaine. There was an older male in one of the backrooms that was not arrested. Sgt. Maranzano did not recognize § 87(2)(b) nor § 87(2)(b) from their arrest photographs but recognized § 87(2)(b) and § 87(2)(b) as two of the persons arrested from their arrest photographs. Sgt. Maranzano did not recall anyone asking for a search warrant. Sgt. Maranzano did not recall any officer speaking discourteously to any of the perpetrators.

Subject Officer: DET. DENNIS FRIENDLY

- *Det. Friendly is a § 87(2)(b)-old black male who 5'11" tall, weighs 205lbs with black hair and brown eyes.*
- *On February 4, 2010 from 12:27 p.m. to 9:00 p.m. He was assigned to the prisoner van working with PO Felix Ortiz. He was not at the incident location on February 1 and 3, 2010.*

Memo book

At 7:05 p.m., Det. Friendly was en route to the vicinity of Pitkin and Schenck Avenues. At 7:15 p.m., there were 4 arrests made inside § 87(2)(b) (Encl. C50-C54).

CCRB Statement

The CCRB interviewed Det. Friendly on October 13, 2010 (Encl. C55-C56). Det. Friendly reiterated the same information provided by Sgt. White about the description and status of § 87(2)(b). On February 4, 2010, at approximately 7:15 p.m., Det. Friendly received a radio communication that he and PO Ortiz should drive over to § 87(2)(b) to collect prisoners. When they arrived at the location, there were four individuals already in handcuffs and outside. Det. Friendly never went inside the location. He filled out their pedigree information as the prisoners were placed into the van. Det. Friendly recalled that Det. Francis and Sgt. Maranzano were outside with the arrested individuals. The perpetrators were transported to the 73rd Precinct stationhouse as there was a blood drive at the 75th Precinct stationhouse. Det. Friendly had been to the location prior to February 4, 2010 and stated that the front door to the building swings but it is partially broken from its hinges. The first floor apartment had a broken front door as well. On the date of the incident, Det. Friendly did not recall saying to anyone, "Shut the fuck up nigger! You think you are a jail house lawyer. You are a stupid ass nigger anyway! Get the fuck out of here." Det. Friendly did not recall using any racial disparaging language or referring to anyone as being a "black motherfucker." Det. Friendly stated that the only person he recalled was § 87(2)(b) as he was wearing military clothing. Det. Friendly did not recognize § 87(2)(b) and § 87(2)(b) from their arrest photographs. Det. Friendly did not recall anyone asking for his badge number or anyone asking for a search warrant. He added that there was no search warrant for the entry into the apartment.

Witness Officer: DET. MATTHEW FRANCIS

- *Det. Francis is a § 87(2)(b)-old white male who is 5'9" tall, weighs 215lbs with brown hair and brown eyes.*
- *On February 4, 2010, Det. Francis worked from 12:27 p.m. to 9:00 p.m. He was the arresting officer working with Det. Marinakos and Sgt. Maranzano. They were in an unmarked vehicle. Det. Francis was not at the incident location on February 1 or 3, 2010.*

Memo book

At 7:05 p.m., Det. Francis was en route to Pitkin and Schenck Avenues. At 7:15 p.m., there were 4 arrests made inside § 87(2)(b). They were taken to 73rd Precinct stationhouse (Encl. C28-C32).

Criminal Court Supporting Deposition

These reports state that Det. Francis, on February 4, 2010, through his professional training as a police officer and experience, confirmed that crack/cocaine residue was found in the possession of § 87(2)(b) and § 87(2)(b) (Encl. C39-C47).

CCRB Statement

The CCRB interviewed Det. Francis on October 14, 2010 (Encl. C48-C49). Det. Francis stated that § 87(2)(b) had been the subject of numerous investigations for drugs. There have been numerous complaints for drugs since Det. Francis has been working with the Narcotics Unit for the past 6 years. He recalled at least 4 search warrants being executed at the location. However, on February 4, 2010, there was no search warrant for § 87(2)(b). At approximately 7:00 p.m. Det. Francis was at the 75th Precinct stationhouse and then they left the building heading towards § 87(2)(b). Det. Francis could not provide an explanation as to why they headed to § 87(2)(b) at this time. Det. Francis was driving with Det. Marinakos and Sgt. Maranzano also in the vehicle. Det. Francis was driving down § 87(2)(b) and observed a white male wearing army camouflage standing in front of § 87(2)(b). The male, identified through investigation as § 87(2)(b) was just standing there as Det. Francis was passing by. Det. Francis added that he knew most of the people in the neighborhood and that he did not know § 87(2)(b). This raised his suspicion. Det. Francis drove around the block and § 87(2)(b) was no longer standing in front of the door. It took Det. Francis about one minute to drive around the block. Det. Francis waited two to five minutes outside of the location but § 87(2)(b) did not exit. Det. Francis never saw § 87(2)(b) enter the building.

Det. Francis wanted to interview § 87(2)(b) and went up to § 87(2)(b) as he figured that § 87(2)(b) went inside the building. Det. Marinakos and Sgt. Maranzano followed. Det. Francis knocked on the door, which was not locked but closed. § 87(2)(b) answered the door. Det. Francis identified himself as the police and had his shield out visible to § 87(2)(b). He did not have his gun drawn and could see that the front door of the building opened up directly into the downstairs apartment. When she opened the door, Det. Francis was able to see into the room where narcotics were visible on a table inside. Det. Francis then went inside and arrested the four individuals. Gary Graves was in the back bedroom. Det. Francis interviewed § 87(2)(b) and determined that he was not involved with the narcotics and so he was not arrested.

Det. Francis stated that § 87(2)(b) has been arrested numerous times at the location and was the only person who had authority to be at the location. Det. Francis did not recall Det. Friendly being present inside the building and only recalled Det. Marinakos and Sgt. Maranzano being present inside the apartment. Det. Francis did not recall a black male officer being present on the scene. Det. Francis identified § 87(2)(b) and § 87(2)(b) through their arrest photos. Det. Francis did not recall anyone referring to § 87(2)(b) or § 87(2)(b) as a “nigger” or using any discourteous language to any of the perpetrators. Det. Francis did not recall anyone asking for a search warrant.

NYPD Documents

SPRINT

There were no SPRINT records for any of the incidents (Encl. G1).

Search warrants

There were no search warrants procured for the entries into § 87(2)(b) on February 1, 2010, February 3, 2010 and February 4, 2010 (Encl. G2 & G9).

75th Precinct Tour 3 Command Log

On February 1, 2010, PO Mitchell brought § 87(2)(b) § 87(2)(b) and § 87(2)(b) to the 75th Precinct stationhouse at approximately 9:15 p.m. They were arrested inside § 87(2)(b) at approximately 8:45 p.m. for § 87(2)(b), § 87(2)(a) 160.50 (Encl.) On February 3, 2010, Det. Martinez brought § 87(2)(b) to the stationhouse at 9:25 p.m. for § 87(2)(b), § 87(2)(a) 160.50. She was arrested at approximately 8:50 p.m. On both occasions, § 87(2)(b) was released with a desk appearance ticket (Encl. D1-D2).

73rd Precinct Tour 3 Command Log

On February 4, 2010, Det. Francis brought § 87(2)(b) and § 87(2)(b) into the 73rd Precinct stationhouse at approximately 7:45 p.m. They were arrested inside § 87(2)(b) at approximately 7:15 p.m. for § 87(2)(b), § 87(2)(a) 160.50 (Encl. D3).

Criminal Complaint and Arrest Reports

These reports state that on February 4, 2010, § 87(2)(b) and § 87(2)(b) were arrested for § 87(2)(b), § 87(2)(a) 160.50 inside § 87(2)(b) in Brooklyn (Encl. C33-C38).

Property Voucher

On February 4, 2010, Det. Francis vouchered one blue pill as well as one metal pipe and a Ziploc bag containing crack/cocaine residue under § 87(2)(b)'s name.

Other Evidence

§ 87(2)(b) Lexis-Nexis showed that § 87(2)(b) resides at § 87(2)(b) in Brooklyn. The database also provided a working contact number, which the CCRB used to contact § 87(2)(b). A check of the New York City Department of Finance as well as the New York City Department of Buildings showed no evidence of above-mentioned location being condemned or uninhabited as taxes were paid on the property in early January 2010.

Summons/Arrest for Incident and Disposition

- All criminal charges in connection with the incidents on February 1, 3 and 4, 2010 have been sealed.

Status of Civil Proceedings

- There has been no Notice of Claim filed with the City of New York as of November 23, 2010 (Encl. F7).

Civilians' Criminal History

- § 87(2)(b) [REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED] [REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED] [REDACTED]
 - [REDACTED] [REDACTED]
 - [REDACTED]
[REDACTED]
- § 87(2)(b) [REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED] [REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED] [REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]

Civilians' CCRB History

- This is the first CCRB complaint filed regarding § 87(2)(b) and § 87(2)(b) (Encl. A8-A9).
- Other than this complaint, § 87(2)(b) has filed one other CCRB complaint (Encl. A7):
 - § 87(2)(b) [REDACTED]
[REDACTED]

Subject Officers' CCRB History

- Sgt. White has been a member of the service for sixteen years and there are no substantiated CCRB allegations against him (Encl. A1-A3).
- Sgt. Maranzano has been a member of the service for fourteen years and there are no substantiated CCRB allegations against him (Encl. A4).
- Det. Friendly has been a member of the service for eight years and there are four substantiated CCRB allegations against him (Encl. A5-A6):
 - In case 201001417, the CCRB substantiated allegations of physical force, threat of arrest, refusal to provide name and shield number and unauthorized entry and search. The CCRB recommended that charges be brought against him. The NYPD has yet to make any final determination.

Conclusion

Identification of Subject Officers

- As Sgt. White acknowledged that he was the supervising officer on the scene on February 1, 2010 and February 3, 2010, the allegations of entry and search of the incident location are pleaded against him in **Allegation A**.

- As the CCRB was unable to identify the officer who spoke discourteously to § 87(2)(b) on February 1, 2010 and February 3, 2010, **Allegation B** is pleaded against “an officer.”
- As Sgt. Maranzano acknowledged that he was the supervising officer on the scene on February 4, 2010, the allegation of entry and search of the incident location is pleaded against him in **Allegation C**.
- Although Det. Friendly stated that he never went into the apartment, § 87(2)(b) described his general features as well as provided his badge number as the officer who spoke discourteously to him during his CCRB interview. Therefore, **Allegations D and E** are pleaded against him.

Investigative Findings and Recommendations

Allegation A – Abuse of Authority: On February 1 and 3, 2010, Sgt. Michael White supervised the entry and search of § 87(2)(b) in Brooklyn.

Allegation C – Abuse of Authority: On February 4, 2010, Sgt. Dominick Maranzano supervised the entry and search of § 87(2)(b) Brooklyn.

Sgt White acknowledged that he went to § 87(2)(b) a two-floor family home, on February 1, 2010 and February 3, 2010, along with several officers. Sgt. Dominick Maranzano stated that he entered § 87(2)(b) on February 4, 2010, along with several detectives.

Sgt. White stated that § 87(2)(b) was an abandoned building where he had responded frequently to reports of drug use and made several arrests. In addition, Sgt. White stated that they had received complaints that persons at § 87(2)(b) were stealing electricity from a nearby building by use of an extension cord. PO Mitchell, one of the officers who entered on February 1, 2010, stated that the officers observed individuals using drugs in the downstairs apartment when they entered the building. Det. Ortega, present for the incident, stated that the front door to the building was open at the time they entered.

Det. Michelle Martinez, one of the officers who entered on February 3, 2010, stated that she saw four individuals smoking crack when they entered the building. Det. Francis stated that on Feb. 4, 2010, when he knocked on the door at § 87(2)(b) a woman opened the door and narcotics were visible on a table inside the downstairs apartment.

§ 87(2)(g)
 [REDACTED]
 [REDACTED]
 [REDACTED]

§ 87(2)(g)
 [REDACTED]
 [REDACTED]
 [REDACTED]
 [REDACTED]

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation B – Discourtesy: On February 1 and 3, 2010, an officer spoke rudely to § 87(2)(b)

§ 87(2)(b) stated that a black male officer told her “We don’t have no fucking search warrant. We do what the fuck we want to do” on both February 1, 2010 and February 3, 2010 when she asked for a warrant. § 87(2)(b) was unable to offer much description of the officer and the CCRB was only able to identify two black officers, Sgt. White and PO Mitchell who both denied ever speaking to § 87(2)(b) discourteously. § 87(2)(b) was also unable to say whether the officer was the same person who was allegedly rude to her on both days. As § 87(2)(b) does not appear on any NYPD tactical plan for February 1 and 3, 2010, it cannot be determined which officers were present on the scene. § 87(2)(g)

Allegation D – Discourtesy: On February 4, 2010, Det. Dennis Friendly spoke obscenely to

§ 87(2)(b) and § 87(2)(b)

Allegation E – Offensive Language: On February 4, 2010, Det. Dennis Friendly made remarks to § 87(2)(b) and § 87(2)(b) based upon race.

Both § 87(2)(b) and § 87(2)(b) alleged that Det. Friendly spoke to § 87(2)(b) discourteously and that he additionally referred to § 87(2)(b) and § 87(2)(b) as a “nigger.” § 87(2)(b) stated that he asked the officer for his badge number and he provided the number “2755” which is assigned to Det. Friendly. Det. Friendly stated that he never went into the building, which was corroborated by Det. Francis. However, Sgt. Maranzano said Det. Friendly did go inside the building. § 87(2)(g)

Team: 2

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Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date